

STATE OF OKLAHOMA

1st Session of the 60th Legislature (2025)

HOUSE BILL 1747

By: Moore

AS INTRODUCED

An Act relating to higher education; amending 70 O.S. 2021, Section 2604, which relates to Oklahoma Higher Learning Access Program awards; prohibiting payment for certain reenrollment courses; providing an effective date; and declaring an emergency.

BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

SECTION 1. AMENDATORY 70 O.S. 2021, Section 2604, is amended to read as follows:

Section 2604. A. Subject to the availability of funds, an amount equivalent to the nonguaranteed resident tuition for which an eligible Oklahoma Higher Learning Access Program student is obligated at an institution of The Oklahoma State System of Higher Education shall be awarded by allocation from the Oklahoma Higher Learning Access Trust Fund.

B. Subject to the availability of funds, for each eligible Oklahoma Higher Learning Access Program student enrolled at a private institution of higher learning located within this state and accredited pursuant to Section 4103 of this title, the Oklahoma

1 State Regents for Higher Education shall award from the Oklahoma
2 Higher Learning Access Trust Fund an amount equivalent to the amount
3 of resident tuition for which the student would be eligible if the
4 student were enrolled in a comparable program at a comparable
5 institution of The Oklahoma State System of Higher Education.
6 Comparability shall be determined by the State Regents.

7 C. Subject to the availability of funds, an amount equivalent
8 to the tuition for any eligible Oklahoma Higher Learning Access
9 Program student enrolled in a public postsecondary vocational-
10 technical program or course for the purpose set forth in Section
11 2602 of this title shall be awarded by allocation from the Oklahoma
12 Higher Learning Access Trust Fund. Provided, such allocation shall
13 not exceed the amount a student would have received for comparable
14 enrollment at a two-year institution within The Oklahoma State
15 System of Higher Education.

16 D. 1. An award allowed by this section shall not be allowed
17 for courses or other postsecondary units taken in excess of the
18 requirements for completion of a baccalaureate program or taken more
19 than five (5) years after the student's first semester of
20 postsecondary enrollment. The Oklahoma State Regents for Higher
21 Education may award the Oklahoma Higher Learning Access Program
22 benefits for courses of postsecondary units taken more than five (5)
23 years after the student's first semester of postsecondary enrollment
24 only in hardship circumstances; provided, however, no Oklahoma

1 Higher Learning Access Program participant may receive benefits
2 beyond a cumulative time period of five (5) years.

3 2. The Oklahoma State Regents for Higher Education may award
4 the Oklahoma Higher Learning Access Program benefits for a student's
5 first semester or other academic unit of postsecondary enrollment
6 taken more than three (3) years after the student graduates from
7 high school or completes an educational program equivalent to high
8 school graduation as authorized in subsection A of Section 2603 of
9 this title or after the student turns twenty-one (21) years of age
10 as authorized in subsection B of Section 2603 of this title if the
11 student is a member of the Armed Forces of the United States, the
12 Reserve Corps of the Armed Forces of the United States, or the
13 Oklahoma National Guard, and is ordered to active duty or active
14 duty for special work or training and due to the duty commitment the
15 student is unable to enroll prior to the end of the three-year
16 period or before the student reaches twenty-one (21) years of age.
17 The period shall be extended by the length of the term of duty.

18 3. The Oklahoma State Regents for Higher Education shall
19 establish a maximum limit on the number of courses or other
20 postsecondary units to which Oklahoma Higher Learning Access Program
21 benefits will apply.

22 E. Benefits awarded under the Oklahoma Higher Learning Access
23 Program shall be awarded to all eligible applicants without any
24 limitation on the number of awards in any year other than the amount

1 of funds available for the program and the number of eligible
2 applicants. Subject to the provisions of subsection F of this
3 section, if funds are not sufficient to provide awards for all
4 eligible applicants, the Oklahoma State Regents for Higher Education
5 shall make awards on the basis of need. Provided, the Oklahoma
6 State Regents for Higher Education shall take into consideration
7 other grants and scholarships received by an eligible applicant when
8 making awards.

9 F. The Oklahoma State Regents for Higher Education may, at the
10 time an award is made on behalf of an Oklahoma Higher Learning
11 Access Program student, set aside in the Oklahoma Higher Learning
12 Access Trust Fund funds for the full commitment made to such Higher
13 Learning Access Program student. For all academic years, students
14 who have previously received awards under the provisions of the
15 Oklahoma Higher Learning Access Act, Section 2601 et seq. of this
16 title, and who have continued at all times to fulfill the
17 requirements for eligibility to receive awards provided pursuant to
18 this program shall be given an absolute priority for continued
19 financial support by the Oklahoma Higher Learning Access Program
20 superior to any students who are applying for such benefits for the
21 first time.

22 G. 1. Beginning with the 2018-2019 academic year, an award
23 allowed by this section shall not include an amount for payment of
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1 remedial noncredit-earning courses taken by an eligible Oklahoma
2 Higher Learning Access Program student.

3 2. Beginning with the 2025-2026 academic year, an award allowed
4 by this section shall not include an amount for payment of the
5 reenrollment in courses previously paid for by an award allowed by
6 this section and failed by the eligible Oklahoma Higher Learning
7 Access Program student.

8 SECTION 2. This act shall become effective July 1, 2025.

9 SECTION 3. It being immediately necessary for the preservation
10 of the public peace, health or safety, an emergency is hereby
11 declared to exist, by reason whereof this act shall take effect and
12 be in full force from and after its passage and approval.

13 60-1-10385 AQH 12/28/24
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